

Ross on Crime
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Hostile witness
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Hostile witness

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[8.1900] Definition

In *R v Hutchinson* (1990) 53 SASR 587; 49 A Crim R 229 (CCA) King CJ reviewed the authorities and said (at 592; 234):

[T]he correct test as laid down by the High Court is whether the witness is deliberately withholding material evidence by reason of an unwillingness to tell the whole truth at the instance of the party calling him or for the advancement of justice. The test so formulated

does not depend upon the motive of the witness in withholding evidence or, of course, giving false evidence.

If a witness gives false evidence or withholds evidence by reason of an unwillingness to tell the truth or the whole truth at the instance of the party calling him or for the advancement of justice, it matters not whether his motive is hostility to the cause of the party calling him, sympathy for the cause of that party's opponent, desire to advance or protect his own interest in some way, or some other motive. The crucial consideration is that the party calling the witness is unable, by reason of the witness's unwillingness to tell the truth or the whole truth, to elicit the true facts by non-leading questions.

The basis for determination is demeanour and earlier statement. In *Russell v Dalton* (1883) 4 NSW 261 (FC) Windeyer J said (at 266):

If the judge could only determine whether a witness was hostile by his demeanour, it appears to me that the remedial object of the statute would be defeated by a witness of cool demeanour, such as would deceive the presiding judge. The best evidence of a witness being hostile is that he deceives the attorney of the side which calls him as to the evidence which he is about to give.

Approved:

McLennan v Bowyer (1961) 106 CLR 95 at 103.

[8.1905] Uniform Evidence Acts – Unfavourable witness

The *Uniform Evidence Acts* s 38 refers to “unfavourable witness”. See *Adam v The Queen* (2001) 207 CLR 96; 183 ALR 625; 123 A Crim R 280; *R v Le* (2002) 54 NSWLR 474; 130 A Crim R 44 (CCA); *R v Cakovski* (2002) 133 A Crim R 18 (NSW, O’Keefe J); *R v White* (2003) 140 A Crim R 63 at 74 [66] (NSW CCA); *R v Anyang* [2011] VSC 31; *NM Rural Enterprises Pty Ltd v Rimanui Farms Ltd* [2011] NSWSC 203.

Other legislation

Qld: *Evidence Act 1977* s 17;

WA: *Evidence Act 1906* ss 20, 21;

SA: *Evidence Act 1929* s 27;

NZ: *Evidence Act 2006* s 94;

Can: *Canada Evidence Act* s 9.

[8.1910] Earlier statement

A witness may be declared hostile on the basis of a prior inconsistent statement:

R v Hayden [1959] VR 102 (Sholl J);

McLennan v Bowyer (1961) 106 CLR 95 at 103–104;

R v Jacquier (1979) 20 SASR 543 at 554 (FC).

The prior inconsistent statement need not be written. It may be oral: *R v Prefus* (1988) 86 Cr App R 111 at 115 (CA).

[8.1915] Proof of earlier statement

In the absence of the jury:

- The attention of the witness should be taken to the earlier statement: *Price v Bevan* (1974) 8 SASR 81 (FC) at 87 and 90. A voir dire may be necessary: *R v Hadlow* [1992] 2 Qd R 440; (1991) 56 A Crim R 11 at 442–443, 13–15 (CCA); *R v Coventry* (1997) 7 Tas R 199; 98 A Crim R 46 (Slicer J).
- If a witness admits making the statement, further proof is unnecessary.
- If the statement is not admitted, the witness is usually stood down for another witness to give evidence that the statement was made: *Cheney v The Queen* (1991) 28 FCR 103; 99 ALR 360 at 125k, 382 (FCA).

[8.1920] Making the application

Almost always the party calling the witness applies during examination-in-chief that the witness be declared hostile. But the application can also be made in re-examination: *Willis v Magistrates' Court (Vic)* (1996) 89 A Crim R 273 at 279 (Vic, Smith J).

[8.1925] Voir dire to determine hostility

In *R v Coventry* (1997) 7 Tas R 199; 98 A Crim R 46 Slicer J made the following ruling (at 204; 50):

Accepting the above analysis, the permitted conclusion is that a party seeking to have a witness declared hostile for the purpose of the Act, s 98(2), ought be permitted to:

- have the matter determined by means of voir dire examination;
- establish the existence or otherwise of previous inconsistent statements;
- examine the circumstances of inconsistency and the reasons thereof;

- pursue such examination by means of leading questions;
 - challenge responses to such leading questions by means of cross-examination;
- where necessary prove by means of independent evidence the existence of inconsistency and “hostility”;

provided that such questioning and eliciting of evidence are confined to the existence and nexus of inconsistency with an attitude referable to the case. General questioning of character and prior conduct are ordinarily irrelevant to the issue.

The refusal to allow cross-examination is wrong.

In *R v Ashton* (1999) 108 A Crim R 200 (Qld CA) the trial judge had allowed the examination of a witness alleged to be hostile to the prosecution on the voir dire. The defence counsel was not permitted to cross-examine. On appeal held that such cross-examination should have been allowed but that there was no miscarriage of justice.

See also

Voir dire at [22.1700].

[8.1930] Prosecution duty

At common law the prosecution should not call a witness known to be hostile:

Blewitt v The Queen (1988) 62 ALJR 503; 80 ALR 353 at 505, 355;

R v Lawless (1994) 98 Cr App R 342 at 349;

R v Schreik [1997] 2 NZLR 139 (CA).

Under the *Uniform Evidence Acts* it is not improper to call a hostile witness for the purpose of putting the statement into evidence: *R v Adam* (1999) 47 NSWLR 267 (CCA).

[8.1935] Nature of cross-examination

In *R v Smith & Turner (No 2)* (1995) 64 SASR 1; 80 A Crim R 491 (CCA) Mullighan J in the leading judgment said (at 17–18; 506):

In *Price v Bevan* (1974) 8 SASR 81, Bray CJ, having acknowledged that once a witness has been allowed to be cross-examined as hostile, it is a full cross-examination, went on to say (at 88):

If he makes a further statement in the box inconsistent with some prior statement of his, such prior inconsistent statement may be proved in exactly the same way, but again its precise circumstances must first be put to him and the rebutting witness is limited to giving evidence of the precise inconsistent statement so put and must do so orally in the absence of some document authenticated by the hostile witness.

[8.1940] Appeal

In *R v Hunter* [1956] VLR 31 (CCA) the court said (at 32):

The question whether a witness is hostile is for the trial Judge to determine, and his discretion in allowing cross-examination by the party who called him will not, except in very exceptional circumstances, be interfered with on appeal – *Rice v Howard* (1886) 16 QBD 681; *R v Williams* (1913) 29 TLR 188. His discretion may, however, be open to appeal if he has in its exercise taken into account matters which he should not have considered.

[8.1945] Evidential effect of inconsistent statement

In *Bull v The Queen* (2000) 201 CLR 443; 110 A Crim R 562; 171 ALR 613 McHugh, Gummow and Hayne JJ said (at 466; 631 [79]):

[W]hen a witness has been declared a hostile witness and admits that he or she has made an inconsistent statement, the contents of the statement are not proof of the facts therein stated: *Golder v The Queen* (1960) 45 Cr App R 5 at 11; *R v Thynne* [1977] VR 98 at 100. The matter is different if the witness not only admits that he or she made an inconsistent statement but also deposes that the facts in that statement are true. In that situation, the contents of the statement are evidence of the facts which it contains: *Birkett v AF Little Pty Ltd* [1962] NSW 492; *R v Thynne* [1977] VR 98 at 100–101.

[8.1950] Uniform Evidence Acts

Section 38 of the *UEA* deals with what at common law are known as hostile witnesses. This liberalises the law beyond that at common law. Under the *UEA* the relevant term is unfavourable; not hostile, and cross examination of one's witness is admitted more liberally under the *UEA* than at common law.

There are three situations under the Act in which a party can cross-examine its own witness with leave of the court: (i) about a prior inconsistent statement; (ii) where the witness appears to be refusing to genuinely give evidence about a matter of which they are aware and (iii) where

the witness gives evidence that is unfavourable. The third situation is the most unclear and has generated the most case analysis. Factors set out in (i) and (ii) often are relevant to establishing the third criteria – although it is only necessary to establish one of the three criteria to lay a foundation for cross-examination of one's own witness.

Where one of these criteria is established, leave must still be granted in order for cross-examination to be permitted. Where a party is given leave to cross examine its own witness, it is not cross-examination at large, but rather in relation to the subject matter upon which leave was based: *R v Taylor* [2003] NSWCCA 194 at [77]-[88]. In addition to this, with leave, the witness can be questioned about matters solely going credibility.

See, *DPP v Nair* (2009) 170 ACTR 15; 236 FLR 239; [2009] ACTCA 17; *Razzak v The Queen* (2008) 191 A Crim R 530; [2008] NSWCCA 304; *R v SH* (2011) 6 ACTLR 1; 256 FLR 123; [2011] ACTSC 198.